

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL APPEAL (DB) No.105 of 2026

Arising Out of PS. Case No.-167 Year-2019 Thana- PARIHAR District- Sitamarhi

Md. Jabir @ Md.Jabir Shaikh S/o- Late Iliyas Resident of Village- Sutihara
PS- Parihar, Dist- Sitamarhi

... .. Appellant/s

Versus

The State of Bihar

... .. Respondent/s

Appearance :

For the Appellant/s	:	Mr.Iqbal Asif Niazi, Advocate
For the State	:	Mr.Dilip Kumar Sinha, Advocate
For the Informant	:	Dr. Ranjeet Kumar, Advocate
		Mr. Ayush Kumar, Advocate
		Mr.Kaustubh, Advocate
		Mr. Ssanjeev Kumar, Advocate
		Mr. Rohan Verma, Advocate

CORAM: HONOURABLE MR. JUSTICE RAJEEV RANJAN PRASAD
and
HONOURABLE MR. JUSTICE RAMESH CHAND MALVIYA
ORAL ORDER

(Per: HONOURABLE MR. JUSTICE RAJEEV RANJAN PRASAD)

4 10-08-2026 Although, the matter has been taken up today for hearing on the point of suspension of sentence and release on bail to the appellant during pendency of the appeal but in course of hearing, this Court has been informed of the vital discrepancies found in the recording of the judgment of conviction and order of sentence.

2. It is pointed out that in paragraph ‘44’ of its judgment, the learned trial court has held that the prosecution has successfully proved the charges against the accused except Samshool. Thereafter, the learned trial court has held that:-

“accused persons stand guilty for the offence punishable under Section 302, 307, 341, 323, 324,



427, 504, 506 and 109/149 of IPC. The prosecution has succeeded to bring home the guilt against the accused for the alleged offences. Accordingly, taking support of Section 222 CrPC, although charge is not framed u/s 307, conviction is made u/s 307 IPC. All the accused persons are convicted for offence punishable u/s 302, 307, 341, 323, 324, 427, 504, 506, 109/149 of IPC. Since the accused persons are on bail, their bail bonds were cancelled and they were taken in custody."

3. It is further pointed out that in the order of sentence dated 26.11.2025, the learned trial court has again committed a gross error by not imposing any sentence under Section 302 on all the accused. The Court has recorded in paragraph '48' of the impugned order as follows:-

48. In view of above submissions made by the learned counsel and the facts and discussions as made in the body of judgment, whereby I have found the convicts are guilty of the offense u/s 302, 307, 341, 323, 324, 427, 504, 506, 109/149 of I.P.C and the circumstances and manner in which the offences were committed and seriousness and gravity of the same, I come to the conclusion that this case does not come within the purview of rarest of the rare cases. So, the convicts

- (i) 1. U/s 323- undergo Rigorous Imprisonment for one(01) year and fine of Rs- 1,000/-(One thousand) and in default of payment of fine further R.I. of one (01) week.
2. U/s 324- undergo Rigorous Imprisonment for three (03) years and fine of Rs- 3,000/-(Three thousands) and in default of payment of fine further R.I. of three (03) week.
3. U/s 341- undergo Rigorous Imprisonment for one (01) month and fine of Rs 500/-(five hundred) and in default of payment of fine further R.I. of two (02) days.
4. U/s 427- undergo Rigorous Imprisonment for two(02) years and fine of Rs- 5000/-(five thousand) and in default of payment of fine further R.I. of two (05) weeks.
5. U/s 307- undergo Rigorous Imprisonment for Ten (10) years and fine of Rs- 50,000/- (Fifty



thousand) and in default of payment of fine further R.I. of three (03) months.

All the above mentioned sentences will run concurrently and the period undergone already in the custody shall be set off.

To Convicts- 1. Md. Ashraf, 2. Md. Mukhtar, 3. Md. Aktar, 4. Md. Jabir, 5. Md. Sabir, 6. Md. Jilani, 7. Md. Abdul Ganni.

- (ii) 1. U/s 323- undergo Rigorous Imprisonment for one(01) year and fine of Rs 1,000/-(One thousand) and in default of payment of fine further R.I. of one (01) week.
2. U/s 324- undergo Rigorous Imprisonment for three (03) years and fine of Rs- 3,000/-(Three thousands) and in default of payment of fine further R.I. of three (03) weeks.
3. U/s 341- undergo Rigorous Imprisonment for one (01) month and fine of Rs 500/-(five hundred) and in default of payment of fine further R.I. of two (02) days.
4. U/s 427- undergo Rigorous Imprisonment for two(02) years and fine of Rs- 5000/-(five thousands) and in default of payment of fine further R.I. of two (05) weeks.
5. U/s 307- undergo Rigorous Imprisonment for Ten (10) years and fine of Rs. 50,000/- (Fifty thousand) and in default of payment of fine further R.I. of three (03) months.
6. U/s 302 undergo Rigorous Imprisonment, life imprisonment and fine of Rs- 1,00,000/-(One lakh) and in default of payment of fine further R.I. of six (06) months.
- All the above mentioned sentences will run concurrently and the period undergone already in the custody shall be set off.

To convicts Md. Raju Md. Irfan only

- (iii) 1. U/s 323- undergo Rigorous Imprisonment for one(01) year and fine of Rs- 1,000/-(One thousand) and in default of payment of fine further R.I. of one (01) week.
2. U/s 324- undergo Rigorous Imprisonment for three (03) years and fine of Rs- 3,000/-(Three thousands) and in default of payment of fine further R.I. of three (03) week.
3. U/s 341-undergo Rigorous Imprisonment for one (01) month and fine of Rs. 500/-(five hundred) and in default of payment of fine further R.I. of two (02) days.
4. U/s 427-undergo Rigorous Imprisonment for two(02) years and fine of Rs- 5000/-(five thousand) and in default of payment of fine further R.I. of two (05) weeks.
5. U/s 307- undergo Rigorous Imprisonment for Five (05) years and fine of 50,000/-(Fifty



thousand) and in default of payment of fine further R.I. of three (03) months.
All the above mentioned sentences will run concurrently and the period undergone already in the custody shall be set off.

To convict Sahnaz Khatoon only.

4. Learned counsel for the appellant, learned Additional Public Prosecutor for the State as well as learned counsel for the informant submit that it would be appropriate at this stage to set aside the impugned judgment and order of the trial court on the ground of discrepancies alone and the trial court be directed to pass a fresh judgment and order.

5. At this stage, Mr. Sanjay Kumar, learned counsel has entered appearance and submitted that seven criminal appeals arising out of the same judgment and order are pending. He has given the list of those cases.

6. List this matter tomorrow together with those seven criminal appeals as per the list provided by learned counsel Mr. Sanjay Kumar.

7. These cases shall be listed under the heading “For Orders’ within top five cases.

(Rajeev Ranjan Prasad, J)

(Ramesh Chand Malviya, J)

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